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File No.: EXP202308008
RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF
RESPONSIBILITY AND VOLUNTARY PAYMENT
From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 3, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF (hereinafter, CSIF), through the agreement that is transcribed:

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File No.: EXP202308008
AGREEMENT TO INITIATE SANCTIONING PROCEDURE
From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 14, 2023, a complaint form was filed for non-compliance with the requirements of active publicity (Article 23 of Law 1/2014, of June 24, on Public Transparency of Andalusia) before the Council of Transparency and Data Protection of Andalusia against the CSIF UNION OF ***CENTRO A.A.A.

Along with the aforementioned form, a document was submitted stating that:

- "On March 24, 2023, the delegates of the CSIF union met with (...) ..., to carry out an EXTRA-STATUTORY AGREEMENT (...). On March 28, 2023, the unions held an assembly with the staff of ***CENTRO A.A.A., to accept or not the agreement they had reached with the Company. The sheet presented to the staff stated in the heading:

ASSEMBLY CONVENED BY C.S.I.F AND (...) TO VOTE ON COLLECTIVE AGREEMENT

NAME AND SURNAME

VOTE

SIGNATURE

ID

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From there, the workers began signing and adding their personal data below where it corresponded. WE REPORT that the sheet where we signed did NOT CONTAIN ANY STATEMENT ABOUT THE DATA PROTECTION LAW WHERE THE SIGNING STAFF AUTHORIZED THAT THEIR PERSONAL DATA BE VISIBLE TO ALL WORKERS WHO WERE SIGNING."

- "On the other hand, a worker wanted to sign the document left at the reception and went there, when she arrived the document to sign was not there, following instructions another worker had taken it to her private home with all the data of the workers who had already signed up to that moment.

EVIDENCE No. 2, CONVERSATION VIA WHATSAPP IN THE STAFF GROUP WHERE IT IS STATED THAT IT WAS TAKEN TO HER PRIVATE HOME THAT WE CANNOT PRINT DUE TO DATA PROTECTION BUT IS AT YOUR COMPLETE DISPOSAL SO THAT IT CAN BE VERIFIED BEFORE THE RELEVANT AUTHORITY." (sic)

- "Additionally, on April 5, 2023, the union (...) stated that a total of (...) people exposed their personal data in said document, which was subsequently REGISTERED with the Company Administration. On April 13, 2023, a COLLECTIVE AGREEMENT MEETING was held (...) where (...) stated... that the PROPOSAL... is supported by the signature of (...) workers, which is the DOCUMENT REFERRED TO IN THIS COMPLAINT."

Along with the document, EVIDENCE No. 1 is provided, an image of a sheet with the heading

"ASSEMBLY CONVENED BY (...) AND C.G.T. TO VOTE ON COLLECTIVE AGREEMENT" and the following columns: "NAME AND SURNAME", "VOTE", "SIGNATURE" and "ID". Below it can be seen that 7 people signed and completed their personal data, only that these have been anonymized by the complainant. This sheet does not contain information regarding the processing of personal data. Along with the document, EVIDENCE No. 3 is provided, a printout of an email sent by (...) from ***CENTRO A.A.A. to 20 recipients (whose email addresses were covered with a marker) with the following content: "Attached is the call for the Collective Agreement meeting next Thursday at 12:30 along with our proposal based on that supported by the staff of ***CENTRO A.A.A.."

On May 3, 2023, the Director of the Council of Transparency and Data Protection of Andalusia made the decision to transfer the aforementioned complaint to the Spanish Agency for Data Protection, since from the documentation provided it

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It is clear that the knowledge of the issue presented does not fall under the Council's jurisdiction, given that the scope of its competence, established in the Statute of Autonomy for Andalusia, in Law 1/2014, of June 24, on Public Transparency of Andalusia, and in Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, is fundamentally restricted to the public sector of Andalusia, while the subject of the complaint refers to legal entities external to the aforementioned scope.

On May 4, 2023, this Agency received the aforementioned issue.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 15, 2023, the complaint was forwarded to the INDEPENDENT AND CIVIL SERVANTS UNION with NIF G79514378 (hereinafter, CSIF), for it to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

On July 13, 2023, CSIF submitted a response to this Agency in which it stated that:

"1. Recommendations from the Data Protection Delegate of CSIF and the privacy officer of the U.P. of ***LOCALITY.1.

In cases where circumstances require (collection of signatures for any initiative of our organization, approval of Collective Agreements in entities of which we are part of the legal representation of workers, etc.), personal data must be collected in any format, whether physical or digital, always following the guidelines below to comply with the provisions of personal data protection regulations:

- Prior to the collection of personal data and the processing that will be carried out with them, information about the data processing to be carried out must be provided, to comply with the information duty established in Article 13 of the GDPR. For this, the following will be communicated:
 - o That CSIF is the data controller, our contact details, and those of our DPO.
 - o That it is carried out under one of the legal bases of Article 6.1 of the GDPR (in most cases due to a legal obligation, letter c,) for the purposes that apply in each case (in this case for the approval of the Collective Agreement).
 - o That they will be deleted once they are no longer necessary for these purposes, and that if there is any legal period that requires their custody, they will be kept, but duly blocked.
 - o That they will not be communicated to third parties, unless required by law.
 - o And that any of the rights conferred by the GDPR to the data subjects can be exercised by contacting our email address proteccion.datos@csif.es.
- To comply with this information duty of Article 13, and in accordance with the formula established in Article 11 of the LOPDGDD, our organization offers through our NNTT department the possibility of including in the support where personal data is collected, the following information:
 - o That CSIF is the data controller.
 - o That it is carried out for the purposes that apply in each case (in this case for the approval of the

Collective Agreement).

o That any of the rights conferred by the GDPR to the data subjects can be exercised by contacting our email address proteccion.datos@csif.es or a URL to access all information about the processing in accordance with Article 13 of the GDPR.

- At all times, the identity (name and surname, ID number, and signature) and any other personal data collected and processed from the signatories must be preserved:

o THIS collection of personal data must NEVER be carried out in a common document where the personal data of each of the signatories is incorporated, which would allow the visibility of the information of the other signatories, which would constitute a breach, among others, of the confidentiality principle of Article 5.1.f) of the GDPR and the security of processing of Article 32 of the GDPR.

o PROCEED through the automated formulas offered by our organization for these circumstances.

o PROCEED through PHYSICAL SUPPORTS, but only with formulas that allow preserving the personal information of each of the signatories from the rest.

- If it is not done through one of the automated formulas available in our organization, which already have the appropriate security measures to avoid, among other things, breaching the confidentiality of the same, the document must be safeguarded at all times, so that it is not accessible to third parties.

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- Do not share the information collected with any third party, unless required by law, and consulting beforehand with the Privacy Officer of our Provincial Union.

2. Decision made regarding the complaint transferred from AEPD

All necessary actions have been taken to understand the scope of the facts and their authorship. We are focusing on the training, awareness, and sensitization of personnel within our organization who carry out any processing of personal data, especially among the Delegates, who in this case made the mistake of informing verbally instead of including, with one of the means that our Union provides, the information related to the processing in the document where this data was collected.

Every time any person joins our organization, including the Delegates, in addition to informing them about the processing of their personal data, they are informed of their duty of confidentiality by signing an agreement, and they are provided with a copy of our security policy (Model attached - ANNEX I). Training actions are carried out for all personnel.

In the case of the Delegates, just like last year, when in May a training action was carried out aimed at training in personal data protection for our Delegates and another on Workplace and Personal Cybersecurity, this year it has been or will be taught again:

- WORKPLACE AND PERSONAL CYBERSECURITY, from March 14 to April 13, online modality with a duration of 40 hours for a total of 250 participants (Delegates)

- GDPR AND LOPDGDD in Public Administrations, from September 12 to October 15, online modality with a duration of 40 hours for a total of 200 participants (Delegates)

(We attach information related to the same - ANNEX II).

Additionally, a monthly "training capsule" is sent to them in the form of advice on privacy and personal data protection (we attach one of them - ANNEX III).

3. Causes that motivated the incident that led to the complaint.

The procedure followed in the specific case, which is the subject of the complaint, does not correspond to the guidelines set by this Union regarding the Protection of Personal Data for which we are responsible; in no case do they respond to instructions originating from this union center.

At CSIF, training, awareness, and sensitization actions are continuously carried out for all individuals in our organization who handle personal data, that is, our labor personnel, the released and the delegates. In this case, it is true that they informed verbally instead of including the information about the processing of personal data in the document itself, so that each signer could know it before

including their data, and they did so in a common document for all, instead of doing it in individual documents, or hiding in some way the information of other individuals different from the one signing the document, or using the automated systems that our organization offers. At all times, the document was kept secure, not allowing anyone outside our organization to access it, let alone take a copy of it.

4. Measures adopted to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness.

From the national Organization, through its Data Protection Delegate and in this specific case from our Provincial Union of ***LOCALITY.1, in particular, from its privacy officer, emphasis will be placed on raising awareness and sensitization regarding the action protocols in this matter, increasing the frequency of ongoing training on Data Protection, and reminding the Delegates that there is a Privacy Officer in their Provincial Union (a designated figure in all our provincial unions) for any consultation or issue that may arise regarding data protection and privacy, just as they have the undersigned as DPO of the entity to assist them with what they need regarding compliance with the regulations.

5. Other information we consider relevant.

This Agency should also take into account the special idiosyncrasy and structure of union organizations, especially in the case of Union Delegates, who in most cases carry out their union work in their own workplaces, where the conditions for adopting both technical and organizational security measures become more complicated to control and establish by our organization, without this in any case meaning that we should not supervise it, as we do.

In any case, CSIF actively collaborates with this procedure and remains at the complete disposal of this Agency for any information related to these facts that they consider necessary to gather.”

ANNEX I is provided with a document titled “SECURITY POLICY OF PERSONNEL FOR THE PROCESSING OF PERSONAL DATA,” with the following content (among others):

“Information on the processing to the interested party

We must provide the following information to the interested party:

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- The identity and contact details of the Data Controller
- The purposes of the processing.
- The legal basis for the processing.
- The retention period of the data or the criteria that determine it.
- The rights that assist the data subject.
- And if applicable:
 - The recipients or categories of recipients of the data.
 - The transfer of data to countries or organizations established outside the EU.
- And if the data has not been obtained from the data subject:
 - Category of data.
 - Sources of origin.

“Security Measures

The organization has implemented technical and organizational measures to ensure a level of security appropriate to the risks that may arise from the processing due to the accidental or unlawful destruction of data, loss, alteration, or unauthorized communication and access to the data when they are transmitted, stored, or subject to any other type of processing.

Staff must ensure the security of the data processed by the organization and must inform the Data Controller of any processing operation that may pose a risk affecting data protection or the interests and freedoms of the data subjects. Any design of a new processing operation or update of an existing operation must ensure, prior to its implementation, the protection of personal data and the exercise of

the rights of the data subjects at all stages of processing: collection, access, intervention, transmission, storage, and deletion.”

“Data Retention

Data must be stored in the furniture and department designated for that purpose.

For automated processing, files will be kept on the media, folders, or network directory indicated by the Security Officer.

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It is not permitted to retain data on physical or digital desktops. Temporary processing on such desktops is only allowed to perform operations that require it, and the data must be stored in the appropriate location at the end of the workday.

Access to Information

Restricted access mechanisms to information implemented by the organization must be applied, and access keys must be safeguarded from any disclosure or communication to other persons.

Each person is only authorized to access the resources necessary for the development and fulfillment of their functions.

Access to computer equipment will be restricted through procedures that can identify and authenticate the person accessing them. Usernames and passwords will be considered non-transferable personal data.

Data Processing

Documentary and computer media must be arranged in such a way that they are not accessible to unauthorized persons.

If a person temporarily leaves their workstation, they must hide the documents and lock the computer to prevent the viewing of the information they were working on.

When using printers or copiers, after printing jobs containing personal information, the documents must be collected immediately or printed in a secured manner, ensuring that no printed documents are left in the output tray.”

Attached is a model of “CONFIDENTIALITY AND PROFESSIONAL SECRECY AGREEMENT (EMPLOYEES),” with the following content (among others):

“2.- Commitment to confidentiality and professional secrecy

The USER agrees to comply with the instructions determined by the CONTROLLER that affect the development of their functions to ensure the confidentiality and professional secrecy of all ‘confidential information,’ for which they are explicitly obliged not to disclose, publish, assign, sell, or otherwise, directly or indirectly, make it available to third parties, neither in whole nor in part, and to comply with this obligation even with their own relatives or other members of the organization who are not authorized to access such information, regardless of the medium that contains it.

The USER will access the ‘confidential information’ only if necessary for the provision of the services for which they have been hired and exclusively for the purposes authorized by the CONTROLLER.”

“4.- Data Processing

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The USER declares to be aware of the information and security policies established by the RESPONSIBLE PARTY to ensure data protection and commits to follow the instructions reflected therein and, in the event of perceiving that they are being violated, to notify the RESPONSIBLE

PARTY without unjustified delay for their knowledge and the application of corrective measures to remedy and mitigate the effects caused.

Along with the document, information about a course on "WORKPLACE AND PERSONAL CYBERSECURITY" and "GDPR AND LOPDGDD IN PUBLIC ADMINISTRATIONS" is provided, but no further information is included regarding whether such courses were taught, when, or to whom.

An image is provided showing the "CSIF" logo and the following content:

"Do not share personal data with someone who does not belong to your organization, without being sure that you are authorized to do so. If necessary, consult beforehand.

Advice of the Month

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We cannot share the personal information of our clients, patients, workers, etc., with other companies or organizations without justified cause, that is, without legal authorization to do so.

And if you have it, through which means (email, corporate platforms, in-person, ...) and with what security measures (encryption, pseudonymization, anonymization, ...) to do so."

THIRD: On August 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VIII of the LOPDGDD.

It is verified that CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS with NIF G79514378 has been subject to the following procedures before this Agency:

- In Procedure No.: PS/00274/2019: a sanction of €3,000 (three thousand euros) was imposed for an infringement of Article 5.1.f) of the GDPR.
- In File No.: EXP202311138: CSIF made an early payment of the proposed fine in the initiation agreement, which was €3,000 (three thousand euros) for the infringement of Article 5.1.f of the GDPR, and a fine of €1,000 (one thousand euros) for the infringement of Article 32 of the GDPR.

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FIFTH: According to the report obtained from the AXESOR tool on January 16, 2025, the entity CSIF has a "Sales" volume of (...) euros.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation

agreement. After this period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that personal data processing is being carried out, since CSIF carries out, among other treatments, the collection and storage of personal data of individuals: name and surname and national identity document number (DNI).

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CSIF carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

IV

Obligation Breached. Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, there is a captured image of a form with the heading "ASSEMBLY CONVENED BY (...) AND C.G.T. TO VOTE ON COLLECTIVE AGREEMENT" and the following columns: "NAME AND SURNAME," "VOTE," "SIGNATURE," and "ID NUMBER." Below, it can be seen that 7 people signed and completed their personal data, although these have been anonymized by the complainant.

In its letter dated July 13, 2023, CSIF stated that

"The procedure followed in the specific case that is the subject of the complaint does not correspond to the guidelines set by this Union regarding the Protection of Personal Data for which we are responsible; in no case do they respond to instructions originating from this union center.

CSIF continuously carries out training, awareness, and sensitization actions for all individuals in our organization who handle personal data, namely our staff, the representatives, and the delegates. In this case, it is true that they informed verbally instead of including the information about the processing of personal data in the document itself, so that each signer could know it before including their data, and they did so in a common document for all, instead of doing it in individual documents, or hiding in some way the information of other individuals different from the one signing the document, or using the automated systems that our organization offers.

At all times, the document was kept secure, not allowing anyone outside our organization to access it, much less take a copy of it."

However, the confidentiality of the personal data of those who had signed the aforementioned form was compromised as the UNION did not take the appropriate measures to ensure the security of such data in order to prevent the forms from escaping the scope of the UNION, which resulted in such an image being captured.

Therefore, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, it is considered that the known facts could constitute an infringement attributable to CSIF for violation of the previously transcribed article.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 is, in each individual case, effective, proportionate, and dissuasive."

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.

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h) The voluntary submission by the responsible party or data processor to alternative dispute resolution mechanisms in cases where there are disputes between them and any interested party. In the present case, considering the seriousness of the possible infringement, particularly taking into account the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the sales volume of CSIF of (...) euros is considered as a preliminary factor.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions. As a preliminary matter, it is estimated that the following circumstances exist:

•

The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): for failing to adequately guarantee the confidentiality of the personal data of those who signed the form subject to the complaint, which affected at least 7 interested parties.

The numerical identifier of the DNI along with the verification character corresponding to the tax identification number unequivocally identifies a natural person. This quality makes it a particularly sensitive data since, to the extent that its processing is not accompanied by the necessary technical and organizational measures to ensure that the person identifying with it is indeed its owner, a third party can easily impersonate the identity of a natural person, or, in other words, can commit identity fraud, with the risks this entails for the privacy, honor, and property of the impersonated individual. Therefore, this circumstance is taken into account when grading the sanction to be imposed.

Furthermore, the following aggravating factors are considered for grading:

- Any previous infringement committed by the responsible party or data processor (Article 83.2, letter e), of the GDPR): In Procedure No.: PS/00274/2019: a fine of €3,000 (three thousand euros) was imposed on CSIF for an infringement of Article 5.1.f) of the GDPR. And in File No.: EXP202311138: CSIF made an early payment of the proposed fine in the initiation agreement, which was: €3,000 (three thousand euros) for the infringement of Article 5.1.f).

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of the GDPR, and a fine of €1,000 (one thousand euros) for the infringement of Article 32 of the GDPR. The balance of the circumstances contemplated in Article 83.2 of the GDPR, with respect to the infringement committed by violating the provisions of Article 5.1(f) of the GDPR, allows for an initial administrative fine of €2,000.00.

VII

Obligation not fulfilled. Information to be provided when personal data is obtained from the data subject Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject prior to that further processing with information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In the present case, the UNION made available to the workers of the ***CENTER A.A.A. a form to collect signatures in which the following personal data was requested: names and surnames, signature, and ID number, without providing the data subjects with any information regarding the

aforementioned processing.

This form was signed by a total of (...) persons, to whom no information of any kind required under Article 13 of the GDPR was provided.

In its letter of July 13, 2023, CSIF admitted that this was due to human error:

"All relevant actions have been taken to ascertain the scope of the facts and the authorship thereof. And we are focusing on training, raising awareness, and sensitizing the staff within our organization who carry out any processing of personal data, especially among the Delegates, who are the ones who, in this case, made the error of informing verbally instead of including, with one of the means that our Union provides, the information related to the processing in the document where this data was collected."

Therefore, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to CSIF for violating the previously transcribed article.

VIII

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of limitation

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €20,000,000 or, in the case of a company, of

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an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"(...) b) the rights of the data subjects pursuant to Articles 12 to 22; (...)"

For its part, the LOPDGDD in its Article 71, Infractions, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infractions."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

IX

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved pursuant to Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In this case, considering the seriousness of the possible infringement, especially regarding the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the sales volume of CSIF of (...) euros is considered, as a preliminary matter.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of

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Agreement to initiate sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, contemplated in the aforementioned provisions.

Prior to this, it is estimated that the following circumstances concur:

•

The nature, severity, and duration of the infringement, taking into account the nature, scope, or

purpose of the data processing operation in question as well as the number of affected parties and the level of damages they have suffered (Article 83.2, letter a), of the GDPR): for failing to provide any information regarding the processing of personal data to the (...) interested parties who signed the form subject to this procedure.

Furthermore, the following aggravating factors are considered:

- Any previous infringement committed by the data controller or the data processor (Article 83.2, letter e), of the GDPR): Any previous infringement committed by the data controller or the data processor (Article 83.2, letter e), of the GDPR): In Procedure No: PS/00274/2019: a sanction of €3,000 (three thousand euros) was imposed on CSIF for an infringement of Article 5.1.f) of the GDPR. And in File No: EXP202311138: CSIF made an early payment of the proposed fine in the initiation agreement, which was: €3,000 (three thousand euros) for the infringement of Article 5.1.f of the GDPR, and a fine of €1,000 (one thousand euros) for the infringement of Article 32 of the GDPR.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial administrative fine of €2,000.00.

X

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR and Article 13 of the GDPR, in accordance with what is established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

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In this act, the presumed infringement committed and the facts that could give rise to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, the resolution adopted may require the UNION to adopt the following measures within THREE MONTHS, starting from the date of effectiveness of the resolution concluding this procedure:

- To demonstrate the effective application of appropriate technical and organizational measures, not only to comply with the regulations but also to demonstrate compliance to the supervisory authorities and interested parties.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the

pertinent measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF, with NIF G79514378, for the presumed infringement of Article 5.1.f) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with what is established in the

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Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the claim filed by the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond, without prejudice to what results from the instruction, would be:

- For the alleged infringement of Article 5.1.f) of the GDPR, an administrative fine of: 2,000.00 euros.

- For the alleged infringement of Article 13 of the GDPR, an administrative fine of: 2,000.00 euros.

FIFTH: NOTIFY this agreement to CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF, with NIF G79514378, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at 3,200.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 3,200.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be established at 2,400.00 euros.

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In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in case of opting for either of them, it must send to the General Subdirectorate for Data Inspection an express communication of the withdrawal or renunciation of any administrative

action or appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (3,200.00 euros or 2,400.00 euros), it must do so by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is opting.

Likewise, it must send the proof of payment to the General Subdirector for Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-111224

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency.

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SECOND: On February 14, 2025, CSIF proceeded to pay the sanction in the amount of 2,400.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: CSIF has expressly renounced any administrative action or appeal against the sanction.

FOURTH: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is warranted.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

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In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 2,400.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, CSIF has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or appeal in the administrative pathway. It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 4,000.00 euros.

After CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 2,400.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202308008, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF to notify the Agency within 3 months from the date this resolution becomes firm and enforceable, regarding the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF.

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FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal by the present authority, the express renunciation manifested by CENTRAL SINDICAL INDEPENDIENTE Y DE FUNCIONARIOS CSI-CSIF is accepted. Consequently, the filing of an optional appeal for reconsideration against this resolution is not admissible, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express renunciation, this resolution will be final and fully enforceable from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution may be provisionally suspended in the administrative jurisdiction if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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